



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2022-24985 / PODS Case No. C-031964 regarding Police Officer David Damico

Date: September 10, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer David Damico wrongfully used force against an individual, threatened to use force against an individual, and was discourteous towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of Training, as negotiated by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

March 4, 2025

The Honorable Jessica Trisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038
VIA EMAIL

Re: *CCRB v. PO David Damico (CCRB Case no. 202305057, DADs no. 2024-31968, Tax no. 957509)*

Commissioner Tisch:

A negotiated settlement of dismissal of the charge along with Department Imposed Training was agreed upon and signed by all the parties on January 15, 2025. Assistant Deputy Commissioner-Trials, Anne Stone endorsed the negotiated settlement on February 4, 2025. This is a downward deviation from the NYPD's Disciplinary Matrix. CCRB offered this disposition for the following reasons:

1. PO Damico agreed to take responsibility for his misconduct.
2. While serving at the 73rd Precinct, PO Damico received recognition for Excellent Police Duty 3 times and Meritorious Police Duty eighteen times.
3. PO Damico has also been a member of service for ten years and the CCRB believes there is potential for training to correct/rehabilitate the behavior.
4. The duration of this action, which lasted no more than several minutes, is also a factor CCRB considered in recommending NYPD training.
5. PO Damico attempted to de-escalate the encounter proportionality of the force used by Officer Damico was minimal.

Respectfully submitted,

Andre D. Applewhite

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Chief Prosecutor
NYC Civilian Complaint Review Board